

Rules for Appointment to the Bihar Medical Service

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Rules for Appointment to the Bihar Medical Service

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Rules for Appointment to the Bihar Medical Service

Rule RULES-FOR-APPOINTMENT-TO-THE-BIHAR-MEDICAL-SERVICE of 1929

Published on 14 November 1929

Commenced on 14 November 1929

[This is the version of this document from 14 November 1929.]

[Note: The original publication document is not available and this content could not be verified.]

Rules for Appointment to the Bihar Medical Service

Published vide Notification no. 13020-L.S.-G., dated Patna the 14th November 1929

Copy of Notification no. 13020-L.S.-G., dated Patna the 14th November 1929 by the Government of Bihar and Orissa Local Self-Government Department. - In exercise of the powers conferred by Rules 3 and 4 of the Civil Services (Governor's Provinces) Delegation Rules, 1920, the Government of Bihar and Orissa are pleased to make the following Rules to regulate the recruitment, conditions of service, pay, allowance and pension of the Bihar and Orissa Medical Service:-

1.

Appointments to the Bihar Medical Service shall be made-

(i)

by direct recruitment from candidates not in Government employment;

(ii)

by promotion from the Bihar Sub-Assistant Surgeons service.

2.

The selection of candidates for direct recruitment to the Bihar Medical Service will take place once a year, ordinarily in the month of January and will be made on the advice of the selection board now the State Public Service Commission. The date of the meeting of the board to be convened for the purpose will be fixed by the Inspector-General of Civil Hospitals, Bihar with the approval of Government and will be communicated by him to the members of the board.

3.

The Inspector-General of Civil Hospitals will advertise, sufficiently in advance of the date of the meeting of the selection board, the vacancies in the Bihar Medical Service likely to arise during the ensuing year for which the applications are to be invited (though no guarantee should be given of the appointment of any specified number), and will lay before the board for their consideration the applications received.

4.

The number of vacancies in the Provincial Medical Service within the complete year for which applications are to be invited will be calculated on the basis of the actual vacancies existing at the time of issuing the advertisement plus the number of vacancies bound to occur by the retirement of the members of the service due for superannuation and the vacancies likely to occur through casualties calculated on the average of the previous five years. The selection board will nominate twice the number of candidates likely to be required on this estimate. The final selection will be made by Government as vacancies actually occur. The selected candidates will be on probation for one year, and will be confirmed after that period on the recommendation of the Inspector-General of Civil Hospitals.

5.

All applications for appointment to the Bihar and Orissa Medical Service should be addressed direct to the Inspector-General of Civil Hospitals, Bihar and shall be in the form given in Appendix I, and any application received after the date specified in the advertisement shall be rejected.

6.

The candidate must be graduates of an Indian University, be registered under the Bihar and Orissa Medical Act (II of 1916) and must not be over 28 years of age.

7.

Together with the form of application every candidate shall submit-

(i)

a certificate of character from the Principal of the Medical College from which he passed,

(ii)

diploma in original,

(iii)

evidence of age,

(iv)

health certificate from a Civil Surgeon in the Form prescribed in Rule 57 of the Bihar and Orissa Service Code.

(v)

domicile certificate in original from the District Magistrate, if the candidate claims to be domiciled inhabitant of the province.

8.

Nominated candidates will be eligible for selection to the vacancies accruing in the year of selection and thereafter their candidature will expire. Unselected candidates will be eligible to apply again in the following year.

9.

If any of the candidates selected by Government for permanent appointment on the recommendation of the selection board are not absorbed in permanent vacancies though no fault of their own, such candidates will have precedence over the candidates selected next year and will not be required to apply again.

10.

Any attempt on the part of a candidate to enlist support for his application through persons of influence is liable to disqualify him for appointment.

11.

Rules for Appointment to the Bihar Medical Service

All probationers in the Bihar and Orissa Medical Service will be required to sign a declaration bond when confirmed as Assistant Surgeons in the form in Appendix II.

12.

The time scale of pay sanctioned for officers of the Bihar and Orissa Medical Service is as follows :-

Year of service.

Pay.

Rs.

1st year

..

200

2nd year

..

200

3rd year

..

225

4th year

..

225

5th year

..

250

6th year

..

250

7th year

..

275

8th year

..

275

9th year

..

300

10th year

..

300

11th year

..

325

12th year

..

325

13th year

..

350

14th year

..

350

15th year

..

375

16th year

..

375

17th year

..

400

18th year

..

400

Two selection grades to which promotions are made by selection, viz., 6 posts on Rs. 425 and 6 posts on Rs. 450.

13.

Every officer of the Bihar and Orissa Medical Service shall be required to undergo post-graduate training twice during their period of service-first between the beginning of the 5th and end of the 7th year of service and secondly between the beginning of the 12th and end of the 14th year of service. Failure to complete the training and to pass the practical examination at the end of the course before the completion of the 7th and 14th years of service shall entail stoppage of promotion until the course is completed.

14.

The leave, pension, allowances and other conditions of service of the members of the Bihar and Orissa Medical Service shall be determined by the Rules for the time being in force made by the Local Government under the Civil Service shall be determined by the Rules for the time being in force made by the Local Government under the Civil Service (Governors' Provinces) Delegation Rules 1926.

Appendix I

(See Rules 5)

Form of application

1. Name of candidate in full-
2. Postal address in full-
3. Father's name-
4. Date and place of birth-
5. Names and appointments held under Government, if any of the applicant's family.
6. Names of institutions in which educated-
7. University qualifications and academical distinctions-
8. Nationality-
9. Caste-
10. Home district-

Appendix II

(See Rule 11)

Form of the declaration bond to be executed by Civil Assistant Surgeons.

Know All Men by these presents that I.....son ofam held and firmly bound unto the Secretary of State for India in Council in the penal sum of rupees five hundred (Rs. 500) to be paid to the said Secretary of State his certain attorney successors or assigns for which payment to be well and truly made I bind myself my heirs, executors, administrators and representatives firmly by these presents dated at.....this..... day of20.....And I the said do, hereby for myself my heirs, executors, administrators and representatives covenant with the said Secretary of the State his successors and assigns that if any suit shall be brought touching the subject matter of this bond or the conditions hereunder written in any Court subject to the High Court of Judicature at Patna in Bihar and Orissa the same shall and may at the instance of the said Secretary of State be removed into tried and determined by the said High Court in its Extraordinary Original jurisdiction.

Now the condition of the above written bond or obligation which is executed under the orders of the Government of Bihar and Orissa and is given for the performance of a public duty in which the public are interested within the meaning of the exception to Section 74 of Act IX of 1872 is such that if the above boundenshall faithfully and diligently serve the said Secretary of State his successors and assigns for the period of five years in the Bihar and Orissa medical

Sen/ice in the capacity of an Assistant Surgeon and shall willingly and submissively at all times obey all the lawful orders and commands of the said Secretary of State his successors and assigns and of any Medical Officer of the Department for the time being under whom the above bounden may be appointed to serve and especially shall when ordered so to do forthwith and as ordered proceed to any part of British India or of its dependencies or of the State in alliance with it where his services shall be required and shall on no account (except in case of illness of which a certificate signed by a Civil Surgeon on the district shall be sufficient proof) without the orders or sanction of the said Secretary of State his successors or assigns leave any station to which he shall have been appointed or in any way terminate his service before the end of the said five year and shall while at every such station well and truly and faithfully perform the duties of an Assistant Surgeon subject to the penalties of disobedience therein laid down or failing such shall well and truly pay to the said Secretary of State his successors and assigns the sum of Rs. 500 for every act of disobedience of such Rules and Regulations and on any default or breach of any of the provisions hereinbefore mentioned in respect of his duties which shall result in the termination of his service before the expiration of period thereof shall well and truly pay to the said Secretary of State his successors or assigns the sum of Rs. 500 then the above written bond shall be void otherwise the same shall remain in full force and virtue.

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